



U.S. Department
of Transportation

Research and
Special Programs
Administration

APR 15 1993

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10971

EXPIRATION DATE: May 3, 1993

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Sun Company, Incorporated, Philadelphia, PA.
2. PURPOSE AND LIMITATION: This exemption authorizes the one-time shipment of two DOT Specification tank cars, containing the residue of a Division 2.1 material, meeting all DOT requirements except that the safety relief valves are overdue for retest and provides no relief from any regulations other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR 173.29(c)(2)
5. BASIS. This exemption is based on Sun Company, Incorporated's applications of January 5, 1993, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class (Written Class) class number	Identification number	Packing Group
Liquefied Petroleum Gas	2.1	UN 1075	

7. PACKAGING(S) and SAFETY CONTROL MEASURES:
 - a. Packagings prescribed are DOT specification 112J340W (UTLX 93937) and 105J400W (NDYX 20426) tank cars, meeting all DOT requirements (49 CFR Part 100-299), except that the tank car safety relief valves are overdue for tests.
 - b. MARKING - Tank cars UTLX 93937 and NDYX 20426 must be marked DOT-E 10971 in four inch letters on a contrasting background above the DOT Specification number.

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8. SPECIAL PROVISIONS.

a. Transportation for tank car UTLX 93937 is authorized from Sun Company, Incorporated, Philadelphia, Pennsylvania, to Triple C Railcar, Wilmington, Delaware, a distance of approximately 150 miles, utilizing the most direct route via the CSX Corporation and Consolidated Rail Corporation. Transportation of tank car NDYX 20426 is authorized from Sun Refining and Marketing, Toledo, Ohio, to Triple C Railcar, Wilmington, Delaware, a distance of approximately 600 miles, utilizing the most direct route via Consolidated Rail Corporation.

b. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

9. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS:

a. The Federal Railroad Administration (FRA) is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

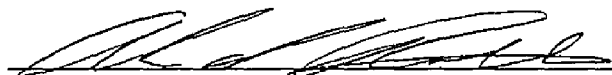
Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street, S.W.
Washington, D.C. 20590
(202) 366-9178 or 366-0549

11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.
- o Any use or application of this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.)

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA